

**Michigan
SYSTEM**
EMS PROVIDER
CRIMINAL CHARGES AND CONVICTIONS

Initial Date:
Revised Date: 05/30/23

Section 8.26

EMS Provider Criminal Charges and Convictions

Purpose:

The purpose of this policy is to provide the parameters for EMS licensure related to criminal charges and convictions.

Definitions:

Charge: any formal accusation made by a governmental authority asserting that somebody has committed a criminal misdemeanor or felony (anything other than a civil infraction).

Conviction: any plea of nolo contendere, a guilty plea, or plea agreement, including deferments, as well as conviction(s) after a trial.

Policy:

Failure to disclose a criminal conviction or withholding of any material information regarding such conviction on any application for licensure will be considered a violation of [Section 20958\(1\)\(a\)](#) of the Public Health Code.

An EMS license or licensed EMS provider at any level may be denied, suspended, or revoked, or other appropriate action taken with respect to a felony or misdemeanor criminal charge or conviction under either [Section 20958\(1\)](#) or [Section 20168](#) of the Public Health Code. Applicants that have a criminal charge, may have their license suspended until resolution of the criminal matter.

Procedure:

1. An EMS provider shall notify all their employers and all Medical Control Authority(s) in which they hold MCA privilege(s) in writing within one business day of being charged and/or convicted of a felony or criminal misdemeanor.
2. The Medical Director shall make a determination whether to temporarily suspend privileges within the respective MCA.
3. The Medical Control Authority PSRO will review and make a recommendation regarding the subject licensee's privileges to practice EMS within the MCA.
4. The Medical Control Authority PSRO will notify the MDHHS and the subject licensee of the results.

Protocol Source/References: [Michigan Public Act 368 of 1978 Public Health Code, as amended](#). Parts 201 and 209. Retrieved April 19, 2021, from the Michigan Legislature website.